



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 21 2000

DOT-E 12511

EXPIRATION DATE: October 31, 2000

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: IMCO Recycling
Irving, TX
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time, one way, transportation in commerce of a rail box car transporting Aluminum Remelting By-Products that exceeds the maximum gross weight on rail by 3,600 pounds. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24b(d) (2) and 173.26.
5. BASIS: This exemption is based on the application of IMCO Recycling, Inc. dated July 19, 2000, submitted in accordance with § 107.117 and a determination that is necessary to prevent significant injury to persons or property).

JUL 21 2000

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Aluminum Remelting by- Products	4.3	UN3170	II

7. SAFETY CONTROL MEASURES:a. PACKAGING - N/Ab. TESTING - N/A

c. OPERATIONAL CONTROLS - The rail box car will be transported from North Platte, Nebraska to IMCO Recycling facility in Wendover, Utah via Union Pacific Railroad.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or change are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried by a crewmember on the train(s) used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the rail carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

JUL 21 2000

Continuation of DOT-E 12511

Page 3

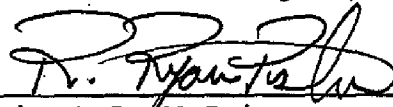
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

JUL 21 2000

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: sdc